

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2159

By: Dobrinski

AS INTRODUCED

An Act relating to motor vehicles; defining terms; prohibiting the manufacture, importation, distribution, selling, or installation of certain supplemental restraint systems; setting punishment for violations; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 12-413.1 of Title 47, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Airbag" means an inflatable restraint device for vehicle occupants that is part of a supplemental restraint system in a motor vehicle;

2. "Counterfeit supplemental restraint system component" means a replacement supplemental restraint system component that displays

1 a mark identical or substantially similar to the genuine mark of a
2 motor vehicle manufacturer or supplier of parts to a motor vehicle
3 manufacturer without authorization from that manufacturer or
4 supplier;

5 3. "Nonfunctional airbag" means a replacement airbag that:

- 6 a. was previously deployed or damaged,
- 7 b. has an electric fault that is detected by the motor
8 vehicles' diagnostic systems when the installation
9 procedure is completed and the motor vehicle is
10 returned to the customer who requested the work to be
11 performed or when ownership is intended to be
12 transferred,
- 13 c. includes a part or object, including a supplemental
14 restraint system component, installed in a motor
15 vehicle to mislead the owner or operator of the motor
16 vehicle into believing that a functional airbag has
17 been installed, or
- 18 d. is prohibited in accordance with 49 U.S.C. Section
19 301209(j) from being sold or leased;

20 4. "Supplemental restraint system" means a passive motor
21 vehicle occupant crash protection system designed for use in
22 conjunction with active restraint systems, including, but not
23 limited to, seat belt assemblies, as described in 49 CFR 571.208.
24 Such term shall include:

- a. each airbag installed in accordance with the motor vehicle manufacturer's design, and
- b. all components required to ensure that an airbag operates as designed by the manufacturer in the event of a crash and in accordance with the federal motor vehicle safety standards for the specific make, model and year of the motor vehicle.

B. No person shall knowingly or intentionally manufacture, import, distribute, sell, offer for sale, install, or reinstall a device intended to replace a component of a supplemental restraint system if the device is:

1. A counterfeit supplemental restraint system component;
2. A nonfunctional airbag; or
3. Any object in lieu of a supplemental restraint system component if the object was not designed in accordance with federal safety regulations for the make, model, and year of the motor vehicle in which such device is or will be installed.

C. Any person violating any of the provisions of this section, shall, upon conviction thereof, be punished as provided in Section 17-101 of Title 47 of the Oklahoma Statutes.

SECTION 2. This act shall become effective November 1, 2025.

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